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KOSTIANTYN MARS, PRO SE

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

KOSTIANTYN MARS

Plaintiff,

vs.

STATE OF CALIFORNIA; GAVIN NEWSOM,
in his official capacity as Governor;

BETH MCGOWEN and JULIE EMEDE,
in their official capacities as Presiding Judges;

SANTA CLARA COUNTY SUPERIOR COURT;

HANNA MARS;

and all related officials,
judges, and agents acting under color of law,

Defendants.

) Case No. :

)
) **CONSOLIDATED EVIDENCE**
) **BINDER - EXHIBIT A**
) **VOLUME 4 of 10**

) **IN SUPPORT OF**

) **NOTICE OF REMOVAL,**
) **CIVIL RICO COMPLAINT,**
) **EMERGENCY MOTION FOR TRO,**
) **MOTION TO DISMISS CRIMINAL**
) **CASE B2402220 WITH PREJUDICE**

) **DATE:**

) **TIME:**

) **DEPT:**

**CONSOLIDATED EVIDENCE BINDER - EXHIBIT A - VOLUME 4 of 10
(SET 3 - CRIMINAL CASE B2402220 - DISMISSAL EVIDENCE)**

In Support of:

- **Notice of Removal** (28 U.S.C. §§ 1331, 1343, 1441, 1443, 1455)
- **Civil RICO Complaint** (18 U.S.C. §§ 1961–1968)
- **Emergency Motion for Temporary Restraining Order**
- **Motion to Dismiss Criminal Case B2402220 With Prejudice** (Fed. R. Civ. P. 65(b))

Related State Court Matters Removed:

- **B2402220** (Criminal Case, Santa Clara County Superior Court)
- **22DV000779** (Domestic Violence Case, Santa Clara County Superior Court)
- **22FL003144** (Family Law / Divorce / Custody Case)
- **24CV441024** (Name Change Case, Santa Clara County Superior Court)
- **200000002626999** (DCSS Wage Garnishment and Arrears Enforcement Case)

Respectfully submitted,

DATED: June 10, 2026

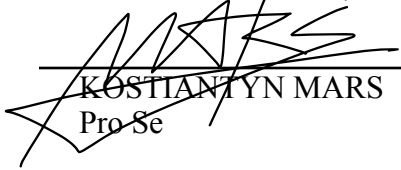

KOSTIANTYN MARS
Pro Se

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EXHIBIT A-24

MOTION TO DISMISS CRIMINAL CASE B2402220 (WITH PROPOSED ORDER)

Description: Motion to dismiss the criminal case with prejudice.

Date: April 08, 2026

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/motion-to-dismiss-criminal-case.pdf>

Scan QR Code for instant download of the complete document:



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UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION

KOSTIANTYN MARS	)	Case No.: B2402220
Removing Defendant / Movant,	)	
vs.	)	MOTION TO DISMISS CRIMINAL CASE
THE PEOPLE OF THE STATE OF	)	B2402220
CALIFORNIA,	)	(28 U.S.C. § 1441 et seq.; 42 U.S.C. § 1983;
	)	Fed. R. Civ. P. 81)
Respondent.	)	DATE:
	)	TIME:
	)	DEPT:
	)	
	)	

MOTION TO DISMISS CRIMINAL CASE B2402220 (28 U.S.C. § 1441 et seq.; 42 U.S.C. § 1983; Fed. R. Civ. P. 81)

Movant Kostiantyn Mars respectfully moves this Court to dismiss Santa Clara County Superior Court Criminal Case No. B2402220 with prejudice and to expunge all related warrants and records.

EXHIBIT A-25

STATEMENT OF DISQUALIFICATION AGAINST JUDGE ANDREA FLINT (NOVEMBER 13, 2023)

Description: Statement of Disqualification against Judge Flint.

Date: November 13, 2023

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/flint-disqualification-2023-11-13.pdf>

Scan QR Code for instant download of the complete document:



1 KOSTIANTYN MARS PO BOX 8081 2 SAN JOSE, CA 95155 (408) 518-0088 3 CONSTANTINE.MARS@GMAIL.COM 4 PRO PER	FILED NOV 13 2023 Clerk of the Court Superior Court of California Santa Clara BY: <u> </u> DEPUTY M. JOHNSON
5 6 SUPERIOR COURT OF THE STATE OF CALIFORNIA 7 IN AND FOR THE COUNTY OF SANTA CLARA	
8 KOSTIANTYN MARS 9 10 Petitioner, 11 vs. 12 HANNA MARS, 13 14 Respondent.	Case No.: 22FL003144 [Hon. Beth McGowen, Presiding Judge of Superior Court of California [Dept. 79 – Hon. Andrea Flint, Judge to be served the Disqualification Statement] NOTICE OF PETITIONER'S VERIFIED STATEMENT OF DISQUALIFICATION OF SANTA CLARA SUPERIOR COURT JUDGE ANDREA E. FLINT FOR IMPERMISSIBLE CONFLICT OF INTEREST; REQUEST FOR HER DISQUALIFICATION AND RETROACTIVE NULLIFICATION OF HER ORDERS [Statement of Disqualification and Memorandum of Points and Authorities filed concurrently] (Code Civ. Proc. 170.1(a)(6)A(iii); 170.1(a)(3)A; 170.3)
21 22 23 24 25 26 27 28	
- 1 - NOTICE OF DISQUALIFICATION STATEMENT RE: HON. ANDREA E. FLINT DISSOLUTION OF FAMILY MARS CASE NO.: 22FL003144	

EXHIBIT A-26

VOID AB INITIO DOMESTIC VIOLENCE RESTRAINING ORDER SIGNED BY JUDGE FLINT AFTER DISQUALIFICATION (NOVEMBER 28, 2023)

Description: Void ab initio Domestic Violence Restraining Order signed by Judge Flint After Disqualification (Nov. 28, 2023).

Date: November 28, 2023

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/dvro-flint-2023-11-28.pdf>

Scan QR Code for instant download of the complete document:



#E-192

DV-109 Notice of Court Hearing

Instruction: The person asking for a restraining order must complete items ① and ②. The court will complete the rest of this form.

① **Person Asking for Protection**
Name: Hanna Mars

② **Person to Be Restrained**
Name: Konstantin Mars (aka Constantine Mars)

The court will fill out the rest of this form.

The temporary orders which are granted and attached remain in full force and effect while you are in court until your hearing is finished.

③ **Notice of Hearing**
A court hearing is scheduled on the request for restraining orders against the person in ②:

Date: 12/14/2023 Time: 1:30PM
Dept.: 79 Room: _____

Name and address of court if different from above:

You may attend your court date remotely, such as by phone or videoconference. For more information, go to the court's website for the county listed above. To find the court's website, go to: www.courts.ca.gov/find-my-court.htm.

④ **Temporary Restraining Orders (Any orders granted are attached on form DV-110.)**

a. Temporary Restraining Orders (any order requested under Family Code section 6320):
(Check one):
(1) ☒ All granted until the court hearing.
(2) ☐ All denied until the court hearing. (Reasons for denial are given below in b.)
(3) ☐ Partly granted and partly denied until the court hearing. (Reasons for denial are given below in b.)

b. Reasons for denial of some or all of the orders requested on form DV-109:
(1) ☐ The facts given in the request (form DV-109) do not show reasonable proof of a past act or acts of abuse. (Family Code sections 6300, 6320, and 6320.5.)
(2) ☐ The facts given in the request do not give enough detail about the most recent incidents of abuse, including when happened, the dates, who did what to whom, or any injuries or history of abuse.
(3) ☐ Other reasons for denial: _____

Superior Court of California, County of Santa Clara
File number: 22F003144
Approved by JWS

Notice of Court Hearing
(Domestic Violence Prevention)

DV-109, Page 1 of 2

Anna Mars
Doc ID: 1a53a9642edec29201b16cedd89e02020308

EXHIBIT A-27

KEY STATEMENTS AND MATERIAL FACTS FROM THE FEBRUARY 7, 2024 HEARING BEFORE JUDGE STEPHEN LOWNEY - EXTORTION OF MONEY AND DOCUMENTS, THREATS OF MALICIOUS PROSECUTION, AND RACKETEERING UNDER COLOR OF LAW

Description: Key excerpts from the February 7, 2024 hearing demonstrating extortion of money, 401k funds, car title, documents of minor child Max Mars, coercion, denial of access to court, denial of hearings, and threats of malicious prosecution by Judge Lowney.

Date: February 7, 2024

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/lowney-hearing-key-statements-2024-02-07.pdf>

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7		
8	SUPERIOR COURT OF THE STATE OF CALIFORNIA	
9	COUNTY OF SANTA CLARA	
10	HANNA MARS	Case No.: 22FL003144
11	Plaintiff(s),	KEY STATEMENTS &
12	vs.	MATERIAL FACTS
13	KOSTIANTYN MARS,	DATE: February 7, 2024
14	Defendant(s).	DEPT: 79
15		
16	KEY STATEMENTS & MATERIAL FACTS	
17	FROM TRANSCRIPT OF HEARING BEFORE THE JUDGE STEPHEN LOWNEY	
18	(February 7, 2024)	
19	The following statements and exchanges from the official transcript and audio recording of the	
20	February 7, 2024 hearing demonstrate Judge Stephen Lowney's extortion of financial assets,	
21	vehicle title documents, and the minor child's identifying documents, coupled with explicit and	
22	implicit threats of adverse judicial action, including declaration as a vexatious litigant, denial	
23	of access to the courts, contempt proceedings, and further malicious prosecution.	
24	Each entry provides the exact location and the verbatim text of the statements in the transcript.	
25	All excerpts are presented with sufficient surrounding context to establish the coercive nature	
26	of the exchanges establishing patterns of racketeering under color of law.	
27	1. Coercion to Surrender 401(k) Retirement Funds and Insistence on Court-Appointed	
28	QDRO Expert Known For Financial Fraud	
	Judge Stephen Lowney required Petitioner to surrender control of his 401(k) account and	
	directed that any division of the account would be handled exclusively through a	
	court-appointed expert, Elizabeth Strasen, known for financial fraud, rather than through the	
	standard Qualified Domestic Relations Order (QDRO) process available directly from the plan	
	provider. Judge Stephen Lowney rejected Petitioner's proposal for an official QDRO prepared	
	by the 401(k) administrator and stated that the matter would proceed only under Judge Stephen	
	Lowney's designated expert known for financial fraud, thereby conditioning further	
	proceedings on Petitioner's compliance with this demand.	
	-:-	
	Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney	

KOSTIANTYN MARS, PRO SE

HANNA MARS

Plaintiff(s),

vs.

KOSTIANTYN MARS,

DATE: February 7, 2024

DEPT: 79

Defendant(s).

The following statements and exchanges from the official transcript and audio recording of the February 7, 2024 hearing demonstrate Judge Stephen Lowney's extortion of financial assets, vehicle title documents, and the minor child's identifying documents, coupled with explicit and implicit threats of adverse judicial action, including declaration as a vexatious litigant, denial of access to the courts, contempt proceedings, and further malicious prosecution.

1. Coercion to Surrender 401(k) Retirement Funds and Insistence on Court-Appointed QDRO Expert Known For Financial Fraud

Judge Stephen Lowney required Petitioner to surrender control of his 401(k) account and directed that any division of the account would be handled exclusively through a court-appointed expert, Elizabeth Strasen, known for financial fraud, rather than through the standard Qualified Domestic Relations Order (QDRO) process available directly from the plan provider. Judge Stephen Lowney rejected Petitioner's proposal for an official QDRO prepared by the 401(k) administrator and stated that the matter would proceed only under Judge Stephen Lowney's designated expert known for financial fraud, thereby conditioning further proceedings on Petitioner's compliance with this demand.

-1-

Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

2. Coercion to Transfer Vehicle Title and Surrender Vehicle Title Documents

During discussion of property division, Judge Stephen Lowney explicitly required Petitioner to immediately transfer and surrender the title documents for the vehicle at issue. Judge Stephen Lowney framed this as a non-negotiable condition for resolution of pending matters and indicated that failure to comply would result in continued adverse rulings and denial of relief sought by Petitioner.

3. Extortion of Minor Child Max Mars's Passport, Vaccination Records, and All Identifying Documents for Child Trafficking / International Abduction outside of the United States to Ukraine, Coupled with Threats of Vexatious Litigant Declaration and Denial of Court Access

Judge Stephen Lowney demanded that Petitioner surrender the minor child Max Mars's passport, vaccination card, and all other identifying and travel documents to enforce international abduction of Petitioner's son Max Mars outside of the United States to Ukraine - endangering life of Petitioner's son Max Mars due to ongoing war in that country. When Petitioner sought a custody review hearing, Judge Stephen Lowney conditioned any consideration of custody or visitation issues on immediate compliance with this demand. Judge Stephen Lowney expressly warned that continued resistance would result in Petitioner being declared a vexatious litigant, thereby barring him from filing any further actions or seeking relief in the California courts. This threat was made in direct response to Petitioner's requests for a custody review hearing, trial on the domestic violence restraining order, final trial on all issues, and bifurcation of marital status.

4. Denial of Custody Review Hearing, DVRO Trial, Final Trial, Bifurcation, and Settlement Conference as Leverage for Extortion

Petitioner requested an immediate custody review hearing, trial on the mutual domestic violence restraining orders, final trial on all remaining issues, and bifurcation of the marital status. Judge Stephen Lowney denied each request and removed the final trial and mandatory settlement conference from the calendar. Judge Stephen Lowney stated that these matters would not be heard unless and until Petitioner complied with the demands for the 401(k) account, vehicle title, and the minor child's documents. Judge Stephen Lowney further indicated that non-compliance would result in additional contempt proceedings and further malicious prosecution by the Court.

5. Additional Coercive Statements, Implicit Threats of Denial of Access to Court, Contempt and Further Malicious Prosecution

Throughout the hearing, Judge Stephen Lowney repeatedly framed Petitioner's requests for due process (custody review, evidentiary hearings, and trial) as contingent upon immediate surrender of the financial and custodial documents demanded. Judge Stephen Lowney stated that Petitioner's failure to provide the required documents and accounts would lead to the imposition of further pressure through the Court's contempt powers, denial of access to court, and further complication of proceedings. These statements, when viewed in the full context of the hearing, constitute coercion and extortion under color of law by conditioning fundamental constitutional rights (access to court, custody determination, and liberty) on Petitioner's compliance with the Court's extrajudicial demands for assets and documents - establishing pattern of extortion and racketeering under color of state law.

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Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

These excerpts are corroborated by the full audio recording and certified transcript, both of which are included as Exhibits B-14 and B-15 in the Consolidated Evidence Binder. The pattern of demands for Petitioner's retirement funds, vehicle title, and the minor child's essential documents - paired with explicit threats of vexatious litigant status, denial of court access, contempt, and further prosecution - establish a clear record of coercion, extortion and racketeering under color of state law.

Item	Page	Line	Timestamp	Key Statement	Material Fact / Clarification
1	25	19	[01:20:00]	MS. ROBERTS: The last issue is ... divide Mr. Mars' 401(k) ... the choice of an expert to draft the QDRO.	Financial extortion - 401(k): Court-appointed expert Barbara Strasen imposed on Petitioner's 401(k) division; Petitioner is coerced to pay her fees.
2	26	11	[01:22:15]	MR. MARS: Your Honor, I provided QDRO prepared by my 401(k) provider to Ms. Roberts, and filed it to the court for final trial, but for some reasons it was ignored.	Petitioner provided the official QDRO prepared directly by the 401(k) plan provider , which was rejected.
3	27	1	[01:23:31]	JUDGE STEPHEN LOWNEY: The court selects Barbara Strasen to prepare the process. Both parties are ordered to cooperate with Ms. Strasen. That was the order, and that is the order. Everybody is expected to comply with that order.	Judge Lowney explicitly rejects the official provider QDRO and enforces use of his court-appointed expert.

-3-

Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

1	1					
2	2	4	27	8	[01:23:31]	JUDGE STEPHEN LOWNEY: You have to - Direct judicial order Ms. Strasen is the expert. coercing Petitioner to pay The fee will be split Strasen's fees and surrender between the two of you. control of the 401(k) You will pay half, and you QDRO process to the will cooperate. expert appointed by Stephen Lowney.
3	3					
4	4					
5	5					
6	6					
7	7	5	24	25	[01:17:46]	JUDGE STEPHEN LOWNEY: So, Mr. Mars, Coercion to surrender once title is given to you by vehicle title under threat of whatever bank is holding contempt of court. the loan, you must transfer title forthwith, which means immediately. Immediately.
8	8					
9	9					
10	10					
11	11					
12	12	6	25	1	[01:17:46]	JUDGE STEPHEN LOWNEY: It will be a Coercion to surrender violation of the court order vehicle title under threat of if you do not transfer the contempt of court. title once you receive it immediately.
13	13					
14	14					
15	15					
16	16					
17	17	7	25	4	[01:18:21]	JUDGE STEPHEN LOWNEY: Within 24 Coercion to surrender hours of you having it in vehicle title under threat of your hand you must transfer contempt of court. the title.
18	18					
19	19					
20	20					
21	21	8	19	6-9	[01:02:13]	MS. ROBERTS: I have Extortion / Coercion to sent Mr. Mars several surrender minor child emails that he was Max Mars's passport, court-ordered to bring those green card, and identity documents to my office. documents. Mr. Mars refuses to give up anything. His vaccination record, his green card, his passport.
22	22					
23	23					
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28	28					

-4-

Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

9	20	3-5	[01:03:35]	JUDGE STEPHEN LOWNEY: You must comply with the orders. MR. MARS: Your Honor, my son will be abducted to Ukraine and will never return. There is a war. Max can die.	Extortion / Coercion to surrender minor child Max Mars's passport, green card, and identity documents. Threat to Max Mars's life due to international abduction outside the United States to Ukraine.
10	21	11-20	[01:07:00]	MR. MARS: What should I do if my son will die after international abduction, becoming a victim of the war in Ukraine? JUDGE STEPHEN LOWNEY: You are going to comply. The request was for court order, Mr. Mars, to deliver to the court all legal documents regarding the minor child. And you are ordered to comply.	Extortion / Coercion to surrender minor child Max Mars's passport, green card, and identity documents. Enforcement of child trafficking schema / international abduction of minor child Max Mars outside of the United States to Ukraine
11	19-20	1-27	[01:03:35]	JUDGE STEPHEN LOWNEY: We're talking about documents. You must turn them over. MR. MARS: Those orders were done by disqualified Judge Flint. JUDGE STEPHEN LOWNEY: Yes, and they're valid.	Extortion of child's passport and identity documents under threats of denial of access to court and malicious prosecution via contempt. Enforcement of child trafficking schema / international abduction of minor child Max Mars outside of the United States to Ukraine

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Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

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MR. MARS: Those orders were made against the factual and legal basis of the case.

JUDGE STEPHEN LOWNEY: The orders stand.

MR. MARS: I kindly request to stay this order until trial on opposing DVROs will be heard.

JUDGE STEPHEN LOWNEY: Denied. You must comply with the orders.

MR. MARS: Your Honor, **my son will be abducted to Ukraine** and will never return. **There is a war. Max can die.**

JUDGE STEPHEN LOWNEY: I want you to listen to the court. We have just gone over a vexatious litigant analysis. I've asked for further briefing. And I've asked to see all of the conduct in this case regarding filed motions. What is also really relevant to that designation and to the court in general is when you are ordered to do something by the court, that you comply - and that goes with both parties - and you are not complying. It's not good.

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MR. MARS: Your Honor, I would love to comply, but first **I need this matter to be heard.**

JUDGE STEPHEN LOWNEY: You don't understand. So you do not set conditions on when the court orders are to be complied with. You just comply.

MR. MARS: Your Honor, this order **endangers the life of my son**, and the **court denies me to hear this matter.**
What should I do?

JUDGE STEPHEN LOWNEY: The order is valid. You must comply.

MR. MARS: Your Honor, signature of **disqualified Judge Towery, who also was removed from court like Flint**, cost my mom her life, put her in terminal condition, because **respondent with signature of bribed Judge Towery kicked 95-year-old senior woman with disabilities from home and caused her death.**

JUDGE STEPHEN LOWNEY: Mr. Mars, you have to comply.

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Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

12	19	9	[01:02:13]	MS. ROBERTS: He's in violation of the court order. So I'm asking if you will not move, to court sign to re-issue those.	Threat of re-issuance of child's passport and identity documents for child trafficking / international abduction of minor child Max Mars outside of the United States to Ukraine
13	21	11-20	[01:07:00]	MR. MARS: What should I do if my son will die after international abduction, becoming a victim of the war in Ukraine?	Extortion of child's passport and identity documents under threats of denial of access to court and malicious prosecution via contempt.
				JUDGE STEPHEN LOWNEY: You are going to comply. The request was for court order, Mr. Mars, to deliver to the court all legal documents regarding the minor child. And you are ordered to comply.	Enforcement of child trafficking schema / international abduction of minor child Max Mars outside of the United States to Ukraine
14	14	15-16	[00:44:09]	MR. MARS: Is it possible to hear DVROs trial today? JUDGE STEPHEN LOWNEY: No. And the request for a final trial date is denied.	Denial of DVRO trial and final trial on marital status as the leverage for extortion of 401k funds, car title, passport and documents of Petitioner's son Max Mars

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Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

15	15	9	[00:47:02]	JUDGE STEPHEN LOWNEY: We are going to vacate the March 5th status conference. We are not going to set a trial.	Removal of status conference and refusal to set trial - blocking case resolution as the leverage for extortion of 401k funds, car title, passport and documents of Petitioner's son Max Mars
16	12-13	10-20	[00:37:02]	MR. MARS: Do I understand correctly that we can bring this matter to a family status conference?	Denial of DVRO trial, custody review hearing, final trial and settlement conference used as the leverage of coercion to surrender custody rights and extortion of 401k funds, car title, passport and documents of Petitioner's son Max Mars
				JUDGE STEPHEN LOWNEY: We're not ready to do that. We have a heavily impacted trial calendar. The first full half day I have is June 17th at 9:00 a.m.	
17	17	11	[00:53:54]	JUDGE STEPHEN LOWNEY: None of them have a legal basis. ... If I don't grant this order, what will stop you from continuing to file requests for orders ...	Threat of vexatious litigant designation to deny access to court.

CERTIFICATION

I, Kostiantyn Mars, declare under penalty of perjury under the laws of the State of California and the United States of America that the foregoing Exhibit B is a true and accurate summary of material statements taken from the official transcript of the hearing held on February 7, 2024, before the Honorable Stephen Lowney in Case No. 22FL003144.

1 All quoted language appears verbatim from the official court transcript. The page numbers and
2 timestamps referenced in this Exhibit correspond to the professional transcript filed
3 concurrently herewith.
4

5 Executed on April 8, 2026, at Austin, Texas.

6 DATED: April 8, 2026

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KOSTIANTYN MARS
Pro Se

-10-

Key Statements and Material Facts from Transcript of Hearing - February 7, 2024, Judge Stephen Lowney

EXHIBIT A-28

TRANSCRIPT OF HEARING BEFORE JUDGE STEPHEN LOWNEY (FEBRUARY 07, 2024)

Description: Full transcript of the hearing before Judge Lowney on February 7, 2024 - extortion, coercion, threats, and racketeering under color of law.

Date: February 7, 2024

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/lowney-hearing-transcript-2024-02-07.pdf>

Scan QR Code for instant download of the complete document:



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6 KOSTIANTYN MARS, PRO SE
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SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

HANNA MARS) Case No.: 22FL003144
Plaintiff(s),)
vs.) TRANSCRIPT OF HEARING
KOSTIANTYN MARS,) BEFORE THE JUDGE
Defendant(s).) STEPHEN LOWNEY
DATE: February 7, 2024
DEPT: 79

TRANSCRIPT OF HEARING
BEFORE THE JUDGE STEPHEN LOWNEY
Date: February 7, 2024
Prepared from the official court audio recording

APPEARANCES:

For Petitioner Hanna Mars:
Nancy Roberts, Esq.
Assisted by Maria Rekretuk, Certified Ukrainian Language Interpreter (Bench No. 700739)

For Respondent Kostiantyn Mars:
Kostiantyn Mars, appearing pro se

-1-
Case No. 22FL003144 - Transcript of Hearing Before the Judge Stephen Lowney - February 7, 2024

1 **EXHIBIT A-29**

2 **AUDIO RECORDING OF HEARING BEFORE JUDGE STEPHEN LOWNEY**

3 **(FEBRUARY 07, 2024)**

4 **Description:** Full audio recording of the hearing before Judge Lowney on February 7, 2024 -
5 extortion, coercion, threats, and racketeering under color of law.

6 **Date:** February 7, 2024

7 **ACCESS FULL AUDIO RECORDING**

8 Full audio recording:

9 https://drive.google.com/file/d/1j_19dPqKY-onw9XCMGevyoy-fqhy9SAu/preview

10 Scan QR Code for instant access to full audio recording:



15 **HEARING RECORDING**
16 **BEFORE THE JUDGE STEPHEN LOWNEY**
17 **FEBRUARY 7, 2024**

18 **CASE NO. 22FL003144**
19 **Santa Clara County Superior Court**

20 **Submitted as Evidence in Federal Removal Proceedings**
21 **United States District Court**
22 **Western District of Texas**

EXHIBIT A-30

STATEMENT OF DISQUALIFICATION - JUDGE STEPHEN LOWNEY (FEBRUARY 20, 2024)

Description: Statement of Disqualification filed against Judge Stephen Lowney, Feb 20, 2024

Date: February 20, 2024

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/lowney-disqualification-2024-02-20.pdf>

Scan QR Code for instant download of the complete document:



1	KOSTIANTYN MARS				
2	PO BOX 8081				
3	SAN JOSE, CA 95155				
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5	CONSTANTINE.MARS@GMAIL.COM				
6	PER SE				
7					
8					
9	KOSTIANTYN MARS				
10		Petitioner,			
11	vs.				
12	HANNA MARS,				
13		Respondent,			
14					
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(ENDORSED)
FILED
FEB 20 2024
Clerk of the Court
Superior Court of CA County of Santa Clara
BY: J. RARAS DEPUTY

J. RARAS
SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SANTA CLARA

Case No.: 22FL003144
[Honorable Beth McGowen,
Presiding Judge of Superior Court of California]
[Dept. 72 - Honorable Brooke A. Blecher,
Supervising Judge of Superior Court of California]
[Dept. 79 - Hon. Stephen P. Lowney,
Judge to be served the Disqualification Statement]

**NOTICE OF PETITIONER'S VERIFIED
STATEMENT OF DISQUALIFICATION OF
SANTA CLARA SUPERIOR COURT JUDGE
STEPHEN P. LOWNEY
FOR IMPERMISSIBLE CONFLICT OF
INTEREST,
REQUEST FOR HIS DISQUALIFICATION,
STAY ON ALL HIS ORDERS UNTIL FINAL
JUDGMENT,
AND NULLIFICATION OF ALL HIS ORDERS
RETROACTIVELY BACK TO 10/31/2022**

[Statement of Disqualification and Memorandum of
Points and Authorities filed concurrently]
(Code Civ. Proc. 170.1(a)(6)A(iii);
170.1(a)(3)A; 170.3)

- 1 -
NOTICE OF DISQUALIFICATION STATEMENT RE: HON. STEPHEN P. LOWNEY
DISSOLUTION OF FAMILY MARS
CASE NO.: 22FL003144

EXHIBIT A-31

ITEMS SEIZED FROM MINOR CHILD MAX MARS DURING ARREST - TESLA CYBERTRUCK WITH DONALD TRUMP, “WARRIOR KID” BOOK BY JOCKO WILLINK, DONUTS AND HOT CHOCOLATE - DENIAL OF CONTACT (JUN. 14, 2024)

Description: Evidence of items seized from minor child Max Mars during the unlawful arrest on June 14, 2024.

Date: June 14, 2024

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/seized-items-cybertruck-donald-trump-2024-06-14.pdf>

Scan QR Code for instant download of the complete document:





EXHIBIT A-32
VIDEO RECORDING OF UNLAWFUL ARREST
BY OFFICER CHASE MARTIN
(BADGE #17209, SUNNYVALE PD, CA)
(JUN. 14, 2024)

Description: Video recording of unlawful arrest by Officer Chase Martin (Badge #17209, Sunnyvale PD, CA)

Date: June 14, 2024

ACCESS FULL VIDEO

Full Video:

https://drive.google.com/file/d/1O6yLk2-C_duS0uSko9erA9-ngP5xwnZ7/preview

Scan QR Code for instant access to full video:



EXHIBIT A-33
VOID AB INITIO BENCH WARRANT
ISSUED BY JUDGE STEPHEN LOWNEY
AFTER HIS DISQUALIFICATION
AND THREATS OF MALICIOUS PROSECUTION
(JUN. 17, 2024)

Description: Bench warrant issued by Judge Stephen Lowney Post-Disqualification after his threats of malicious prosecution during extortion of money, 401k funds, passport and documents of Plaintiff's kidnapped son Max Mars on hearing February 7, 2024

Date: June 17, 2024

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/lowney-bench-warrant-2024-06-17.pdf>

Scan QR Code for instant download of the complete document:



SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

MINUTE ORDER

Kostiantyn Mars vs Hanna Mars 23F003144 Date of Hearing: 06/17/2024	Hearing Start Time: 9:00 AM Hearing Type: OSC Contempt Comments: Line 1-9
---	---

Heard By: Lowney, Stephen
Courtroom Reporter: Genice Perez
Location: Department 79
Courtroom Clerk: True Parker
Court Interpreter:
Court Investigator:

Parties Present:
Mars, Hanna
Roberts, Nancy Lee
Respondent
Attorney
Limited Scope
Attorney

Exhibits:

Case is called at 9:02 am.
Petitioner- Kostiantyn Mars is not present.
Attorney Nancy Roberts and the respondent- Hanna Mars are personally present.
Respondent is assisted by Russian interpreter, Laura Mirzoyan (301297).
Respondent- Hanna Mars is sworn.
Court reporter reports on line 9 only, OSC Contempt matter.

Line 1:
Respondent's request for Request for Order- Domestic Violence.
The Court finds today is the date and time set for the hearing on this matter. Petitioner- Kostiantyn Mars had notice and an opportunity to be heard, Mr. Mars has failed to appear.
The Court makes orders and GRANTS the restraining order as requested.

Respondent- Hanna Mars's request for a Restraining Order is granted; a DVRO is issued restraining Petitioner- Kostiantyn Mars for a period of 3 years, the Restraining Order expires 06-17-2027. The DVRO is issued under the same terms as the DVRO which includes Maksym Mars age 8 with the following modification: Petitioner- Kostiantyn Mars shall not call the police to tell them the child is abducted and abused.

Order to Not Abuse granted.
Restrained person must not:
Harass, attack, strike, threaten assault (sexually or otherwise), hit, follow, stalk, molest, destroy personal property, keep under surveillance, impersonate (on the Internet, electronically or otherwise), block movements, annoy by phone or other electronic means (including repeatedly

Issued: 6/17/2024
6/17/2024 OSC Contempt- 23F003144
Page 1 of 4



SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

MINUTE ORDER

Line 8:

Petitioner's Request for Order: Bifurcate

The Court finds today is the date and time set for the hearing on this matter. Petitioner- Kostiantyn Mars had notice and an opportunity to be heard, Mr. Mars has failed to appear.

Petitioner's Request for Order: Bifurcate is DENIED.

Matter will go off calendar.

Line 9:

Respondent's OSC: Contempt

Reported by official Court reporter: Genice Perez

Matter is set for arraignment on the OSC: Contempt.

Attorney Nancy Roberts provides an update re: petitioner- Kostiantyn Mars; petitioner violated the restraining order on Friday and was arrested, petitioner may have bailed out.

The Court responded to Mr. Mars' email request; a follow-up email was sent to the petitioner denying his request for a continuance this morning.

The Court finds today is the date and time set for line 9 order to show cause on the contempt.

Petitioner- Kostiantyn Mars has failed to appear; the Court issues a civil bench warrant in the amount of \$5,000.00.

Attorney Nancy Roberts to prepare the restraining order after hearing.

The Clinic to prepare order after hearing for petitioner.

EXHIBIT A-35
VIDEO RECORDINGS OF CRIMINAL COURT HEARINGS
BEFORE JUDGES KUHNLE AND WILLIAMS -
DENIAL OF HEARING, BLOCKING CRIMINAL CASE FROM RESOLUTION,
EXTORTION OF MONEY VIA LAWYER
ACTING IN CRIMINAL CONSPIRACY WITH THE JUDGE
(AUGUST 2024)

Description: Video recordings of criminal court hearings in which judges denied Petitioner a hearing on the merits despite his and counsel's presence in open court.

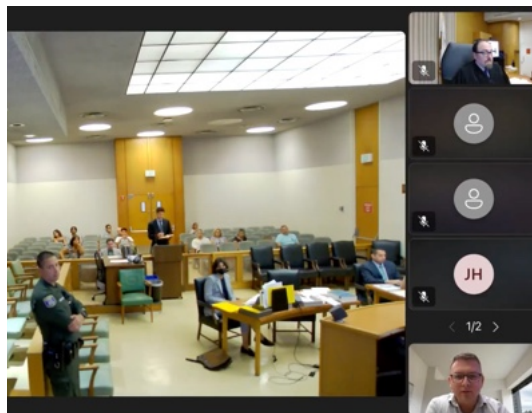
Key Procedural Violations:

Judge Williams denied the defendant and his attorney the opportunity to be heard on the merits of Criminal Case B2402220 and issued a bench warrant, despite both being present in open court and requesting a hearing and dismissal of the case.

This constitutes a violation of due process and denial of access to court. Applicable Law:

- U.S. Const. amend. XIV, § 1 (Due Process Clause)
- 42 U.S.C. § 1983 (Deprivation of constitutional rights under color of law)
- Cal. Const. art. I, § 7(a) (Due Process)
- Procedural due process requires meaningful opportunity to be heard before deprivation of liberty (Mathews v. Eldridge, 424 U.S. 319 (1976))

Date: August 2024



ACCESS FULL VIDEOS

- **August 15, 2024 (Kuhnle) Hearing**

Full Video:

https://drive.google.com/file/d/1DAaltUbRjYs_O_sUDpXiWYWEhHtzG6ql/preview

Scan QR Code for instant access to full video:



- **August 19, 2024 (Williams) Hearing**

Full Video:

<https://drive.google.com/file/d/1dTvasJPaRW-MuYK9gpe0oagzWEdQEw73/preview>

Scan QR Code for instant access to full video:



- **August 21, 2024 (Williams) p.1**

Full Video:

https://drive.google.com/file/d/1Sn0_ZuVeTKEEEPIcN5eOSLtZ3CM4LFZ_/preview

Scan QR Code for instant access to full video:



- **August 21, 2024 (Williams) p.2 - Denial of hearing and issuance of bench warrant**

Full Video:

<https://drive.google.com/file/d/1e60zP91nn3hnodVQTVZB7xTjVwCBbVEC/preview>

Scan QR Code for instant access to full video:



EXHIBIT A-36

SUNNYVALE POLICE DEPARTMENT RESPONSE (OCTOBER 30, 2024) TO REQUEST FOR EVIDENCE (OCTOBER 21, 2024) - DENIAL OF ACCESS TO BODY CAMERA RECORDINGS OF POLICE OFFICERS WHO COMMITTED UNLAWFUL ARREST ON JUNE 14, 2024

Description: Denial by Sunnyvale PD of access to body camera recordings of the June 14, 2024 unlawful arrest - in response to my request dated October 21, 2024.

Date: October 30, 2024

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/sunnyvale-police-bodycam-recordings-denial-2024-10-30.pdf>

Scan QR Code for instant download of the complete document:



Follow up to your Access Sunnyvale service request: SR-00093342
CRM:002090001846

1 message

AccessSunnyvale AP <AccessSunnyvale@sunnyvale.ca.gov>
To: SR-00093342 [REDACTED]

Wed, Oct 30, 2024 at 9:17 AM

Hello Kostantyn,

The City of Sunnyvale is in receipt of your public records act request dated 10/21/2024 for the following records: copy of police report 24-4882. We have determined that your request for records is not disclosable, for those records are unable to be released without a subpoena due to the nature of the charges.

I will be closing out this service request in the Access Sunnyvale system; however, should you have any questions please feel free to contact me at the Records Unit at 408-730-7101.



Best Regards,
Deuel Galla (Pronouns: He/His)

Senior Records Specialist

Department of Public Safety

Phone: 408-730-7101

Fax: 408-730-7705

DGalla@Sunnyvale.ca.gov



Service Request details:

Service Request Number: SR-00093342

Submitted On: 10/21/2024 5:35 PM

Request Type: Public Records Request

Description: Hello, please provide police report, names, badge numbers, and bodycam records of police officers making arrest of Kostantyn Mars on 06/14/2024 on address 1201 Sycamore Terrace 145 on allegations of violation of a restraining order.

Thank you

Initial Response Complete: No

EXHIBIT A-37

ARREST WARRANT ISSUED BY JUDGE MICHAEL CLARK (OCTOBER 23, 2024) IN RESPONSE TO PLAINTIFF'S REQUEST FOR EVIDENCE (OCTOBER 21, 2024) FOR ACCESS TO BODY CAMERA RECORDINGS OF POLICE OFFICERS WHO COMMITTED UNLAWFUL ARREST OF PLAINTIFF ON JUNE 14, 2024

Description: Arrest warrant issued by Judge Michael Clark immediately following Plaintiff's request for police body camera recordings submitted on October 21, 2024, establishing pattern of racketeering and organized criminal enterprise. The warrant enforced the no-contact order with minor child Max Mars and maintained leverage for extortion of money, 401(k) funds, and child's documents.

Date: October 23, 2024

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/clark-arrest-warrant-2024-10-23.pdf>

Scan QR Code for instant download of the complete document:

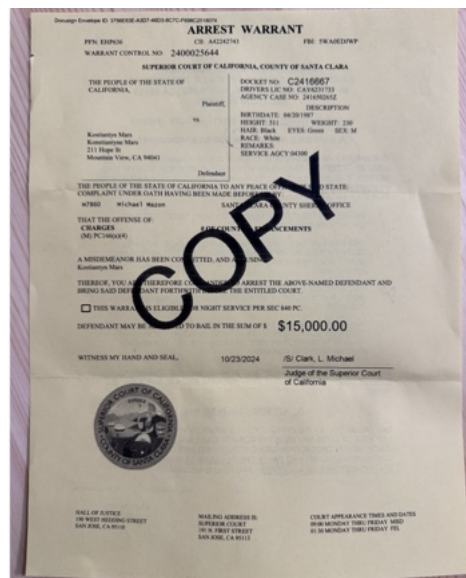


EXHIBIT A-38
PUBLIC RECORD OF RACKETEERING
BY SERHII NAHORNY (FATHER OF RESPONDENT)
AND IVAN OMELCHENKO IN UKRAINE (2015) -
REPEATING THE SAME PATTERN OF RACKETEERING
IN ATTACK ON PETITIONER (2022)

Description: Public media reports and records from 2015 documenting racketeering activity by Serhii Nahornyy (father of Respondent) and Ivan Omelchenko against their former business partner Serhii Rybalko in Ukraine. The reports describe the use of fabricated criminal charges, unlawful arrests, threats, extortion, and the involvement of law enforcement and judicial officials to facilitate the seizure of assets and hostile takeover of a business. This exhibit is offered to illustrate a pattern of racketeering under 18 U.S.C. § 1961 et seq. that is repeated in the targeted racketeering attack against Petitioner in 2022 - 2025 (including unlawful arrest in 2024, fabricated criminal case, unlawful seizure of assets and property, aggravated kidnapping of Petitioner's son Max Mars and removal of Max from Petitioner's custody using void orders issued by criminals from Santa Clara Mafia Cartel on positions of disqualified judges acting outside jurisdiction and corrupt police officers committing threats, theft and unlawful arrests)

Date: 2015 - 2022

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/racketeering-by-ukrainian-cartel-kodlo-gondona.pdf>

Scan QR Code for instant download of the complete document:



INTERNAL CHRONOLOGICAL INDEX

Item	Date	Document	Page
<u>1</u>	2014	Wikipedia Article About Business “SI Group” - Documenting Targeted Racketeering Attack by Criminal Syndicate of Ivan Omelchenko and Serhii Nahorny against Their Business Partner Serhii Rybalko Resulting in Hostile Takeover of Business	33
<u>2</u>	2015	Agravery Article Documenting Racketeering Attack and Hostile Takeover of Business from Serhii Rybalko by Ukrainian Organized Criminals Ivan Omelchenko and Serhii Nahorny (Father of Respondent)	36
<u>3</u>	2016	Ukrainian Tax Authority Records Confirming Serhii Nahorny’s Official Position in SI Group Tans	38

EXHIBIT A-38 - ITEM 1

**WIKIPEDIA ARTICLE ABOUT BUSINESS “SI GROUP” (“S.GROUP”) -
DOCUMENTING TARGETED RACKETEERING ATTACK
BY CRIMINAL SYNDICATE OF IVAN OMELCHENKO AND SERHII NAHORNYI
AGAINST THEIR BUSINESS PARTNER SERHII RYBALKO
RESULTING IN HOSTILE TAKEOVER OF BUSINESS**

Description: Wikipedia article and related public records concerning alleged racketeering activity targeting co-founder Serhii Rybalko of SI Group (also referred to as S.Group). The materials document fabricated criminal charges, involvement of law enforcement and tax authorities, asset seizures, and the resulting hostile takeover of the business by criminal syndicate of Ivan Omelchenko and Serhii Nahorny. This exhibit is submitted to illustrate a pattern of racketeering conduct under 18 U.S.C. § 1961 et seq. that is substantially similar to the pattern of activity documented in the present case.

Date: 2014

Full document:

<https://marsjustice.io/federal-removal/si-group-racketeering-attack-wikipedia.pdf>

Scan QR Code for instant download of the document:



ВІКІПЕДІЯ
Вільна енциклопедія

S.Group

Unverified version (what to do?)

Material from Wikipedia, the free encyclopedia.

S.Group is a group of Ukrainian companies that produce food products and household goods. The group is one of the leading Ukrainian manufacturers of snack products (peanuts, pistachios, packaged sunflower and pumpkin seeds, potato and pita chips, extrusion), as well as a major exporter to the countries of Central Asia and the Middle East.

History

S.Group companies have been operating on the market since 1995 as part of SIGroup, founded by entrepreneurs Serhiy Rybalka and Ivan Omelchenko. However, after the division of SIGroup, the new structure entered the market on August 1, 2014. S.Group includes some of the production facilities, structural divisions, and trademarks of the "merged" company.

Structure

The group structure includes LLC "Prodexport-2009", LLC "Snek-Export" (<https://web.archive.org/web/20151213162605/http://sgroup.dp.ua/biznes-napravleniya/proizvodstvo-snekov/>), LLC "Clean Planet" (<https://web.archive.org/web/20151212182540/http://sgroup.dp.ua/biznes-napravleniya/celyulozno-bumazhnaya-produkciya/>), DP "YUMAK", LLC "Agrosakhinvest 2002", LLC "New Company 2006", LLC "Faeton-Trans" (<https://web.archive.org/web/20151222092504/http://sgroup.dp.ua/biznes-napravleniya/transportnye-perevozki-2/>) (logistics company). Production facilities are located in the city of Synelnykovo, Dnipropetrovsk region (key lines), the city of Dnipro (bread factory), the city of

S.Group



Type	group of companies
Branch	production of snacks, consumer goods and production of pulp and paper products
Founded	1995
Headquarters	Ukraine, Dnipro
Key individuals	Chairman of the Board of Directors Rybalka Dmytro Viktorovych
Product	TM «SEMKI» (http://sgroup.dp.ua/brands-r/tm-semki-ru/), TM «Snekkín» (http://sgroup.dp.ua/brands-r/tm-snekkín-ru/), TM «Kozatska slava» (http://sgroup.dp.ua/brands-r/tm-kozatska-slava-ru/), TM «My Fisherman» (http://sgroup.dp.ua/brands-r/tm-my-rybalka-ru/), TM «Macho» (http://sgroup.dp.ua/brands-r/tm-macho-ru/), TM «KartoFan» (http://sgroup.dp.ua/brands-r/tm-kartofan-ru/), TM «Red Pistachio» (http://sgroup.dp.ua/brands-r/tm-red-ru/), TM «Lavka» (http://sgroup.dp.ua/brands-r/tm-lavka-ru/), TM «Fantasy» (http://sgroup.dp.ua/brands-r/tm-fantasy-ru/), TM «Fantee» (http://sgroup.dp.ua/brands-r/tm-fantee-ru/)
Employees	2 thousand people
Subsidiaries	LLC "Prodexport-2009", LLC "Snek-Export", LLC "Clean Planet", SE "YUMAK", LLC "Agrosakhinvest 2002", LLC "New Company 2006", LLC "Faeton-Trans"

<https://uk.wikipedia.org/wiki/S.Group>

1/2

Mena , Chernihiv region (chips). The company also has 3 export trade representative offices in Kazakhstan , Kyrgyzstan , Georgia .

sgroup.dp.ua (<http://sgroup.dp.ua/ua/>)

Export

Up to 30% of production in the snack segment and up to 15% in the household goods segment is exported . The company's products are supplied to Kazakhstan , Kyrgyzstan , Georgia , Moldova , Belarus , Tajikistan , Iran , Saudi Arabia , Morocco , Algeria , Mongolia , Uzbekistan , Latvia , Lithuania , Estonia , Israel , Bulgaria . The entire product range is exported to most countries.

Conflict with ATB

The cause of the corporate conflict between S.Group and ATB-Market was a family conflict between the founders of the two structures — Sergey Rybalko and his former father-in-law Gennady Butkevych (father of Rybalko's ex-wife Hanna Butkevych). In 2013 , with the assistance of Butkevych, the tax and police carried out numerous searches and stopped production at Rybalko's enterprises, which forced him to leave the country. Law enforcement agencies accused the company of tax evasion. After the Revolution of Dignity, the persecution stopped.

Currently, the parties are in a court economic dispute regarding the repayment by ATB of a debt of over UAH 110 million for the delivered goods. In turn, ATB accuses its opponents of creating an organized criminal group with the aim of seizing someone else's property. According to S.Group, in November 2015, the General Director of ATB-Market LLC, Dmytro Yevteyev, filed a corresponding application with the Prosecutor's Office of the Dnipropetrovsk Region . However, the application was accepted only by the Prosecutor General's Office .

In court, copies of documents are provided to confirm the absence of debt, which S.Group calls falsified. ATB does not provide the originals. The case is under consideration in the Kyiv Commercial Court of Appeal .

Retrieved from <https://uk.wikipedia.org/w/index.php?title=S.Group&oldid=39513858>

EXHIBIT A-38 - ITEM 2

**AGRAVERY ARTICLE DOCUMENTING RACKETEERING ATTACK AND
HOSTILE TAKEOVER OF BUSINESS FROM SERHII RYBALKO
BY UKRAINIAN ORGANIZED CRIMINALS IVAN OMELCHENKO
AND SERHII NAHORNYI (FATHER OF RESPONDENT)**

Description: Article published by Agravery detailing documented racketeering conduct targeting business co-founder Serhii Rybalko. The article describes the use of fabricated criminal charges, arrest and search warrants, and the involvement of law enforcement authorities to facilitate the seizure of assets and hostile takeover of the business. This exhibit is submitted to illustrate a pattern of racketeering activity under 18 U.S.C. § 1961 et seq. that is substantially similar to the pattern alleged in the present case.

Date: 2015

Full document:

<https://marsjustice.io/federal-removal/si-group-racketeering-attack-agravery-2015-12-07.pdf>

Scan QR Code for instant download of the document:



[Home \(/\)](#) [Publications, Recycling](#)

December 7, 2015 - 07:20

New life after divorce: the story of S.Group

[PUBLICATIONS \(/UK/POSTS/SECTION/SHOW/PUBLICATIONS\)](#) - [RECYCLING \(/UK/POSTS/SECTION/SHOW/PROCESSING\)](#)

[Comments 0 \(/https://agravery.com/uk/posts/show/nove-zitta-pisla-rozluccenna-istoria-sgroup\)](#)



<http://storage.agravery.com/uploads/files/COLLAGEs/S.I.Group.jpg>

[Agravery \(Agravery\)](#)

How to benefit from disagreements with a partner and strengthen your position in the market, despite the crisis.

"We managed to get into the top ten with this product," — Dmitry Rybalka, Chairman of the Board of Directors of S.Group, twirls a pack of TM "Sneikin" crackers in his hands and examines the funny character on the package. A year and a half ago, after 19 years of work in the snack market, he and his brother Sergey had to rebuild half of the production processes from scratch after "divorcing" with their partner. "Having set out on our own, we were able not only to increase production, but also to release fundamentally new products," he adds.

How the roads diverged

Entrepreneurs Serhiy Rybalka and Ivan Omelchenko have been friends since they were 14 years old. In the early 1990s, they decided to start a joint business - they were among the first to import imported household chemicals to Ukraine. After some time, they founded the company SiGroup, which very quickly became a leader in the production of snacks. The successful development of the joint business was stopped by Rybalka's family conflict with his former father-in-law - co-owner of the country's largest supermarket chain "ATB-Market" Gennady Butkevych.

"I was searched, drugs were planted, and many criminal cases were opened. Our products were "exhibited" from "ATB", which had a critical impact on sales. It probably seemed to the partner that I, being in prison with one foot, was dragging the business to the bottom. He decided to separate, I learned about it as a fait accompli," says Serhiy Rybalka. Thus, two experienced players, once united by one goal, emerged on the Ukrainian snack market: S.Group and Snack Production. Ivan Omelchenko refused to comment on the story of the divorce.

From monopolist to leader

It was not easy sailing on its own. Rybalka considers the division unfair, primarily because his ex-partner Omelchenko, who was responsible for personnel in the joint business, took the main part of the team with him. In addition, S.Group inherited the debts of ATB-market for the delivered goods totaling \$15 million. However, the main difficulty was to divide the brands.

Before the division, SiGroup was a leader and de facto monopolist in the production of various types of snack products. S.Group received Semki seeds, Kozatskaya razvoja peanuts (later Kozatskaya slava), pistachios and chips under the Macho and Red brands, as well as the entire pulp and paper business and the logistics company Phaelon-Trans. Snack Production received the flagship Flint crackers and Morski seafood, and the Khutorok consumer goods line. "Our proposal was quite peaceful: everyone develops the group of products that remained after the division, we work in our riches, we do not interfere with each other. But my former partner decided otherwise and began to develop the areas that were transferred from SiGroup to our structure. Of course, we also decided to expand the lost areas, as well as develop new ones," says Dmitry Rybalka. Thus, the S.Group portfolio includes crackers, croutons, pita chips, potato chips, extrusion under the "Sneikin" brand, seafood "My Fisherman", and Lavka seeds.

EXHIBIT A-38 - ITEM 3

UKRAINIAN TAX AUTHORITY RECORDS CONFIRMING SERHII NAHORNY Y'S

OFFICIAL POSITION IN SI GROUP TRANS

Description: Official records from the Ukrainian tax authority confirming that Serhii Nahorny served as the registered director of SI Group Trans, a department of SI Group, during the period when the company underwent significant changes in ownership and control. These records also reflect the official connection between Serhii Nahorny and Ivan Omelchenko in relation to the company. This exhibit is submitted to document the formal corporate positions held by the individuals during the relevant timeframe of targeted racketeering attack and hostile takeover of business.

Date: 2016

Full document:

<https://marsjustice.io/federal-removal/si-group-irs-record-nahorny-serhii.pdf>

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Full name		
Nagorny Serhiy Mykolayovych		
Director		
Company name	Type of activity	State
State Enterprise "KUMIB"	84.22 Defence activities	in a state of suspension
PE "COMEFORT"	20.30.0 Manufacture of wooden structures and joinery	discontinued
LLC "S.I. GROUP TRANS"	52.29 Other support activities for transportation	discontinued
Director		
Owner		
Company name	Type of activity	State
PRIMED LLC	10.39 Other processing and preserving of fruits and vegetables	registered
LLC "NYD"	46.63 Wholesale of machinery and equipment for mining and construction	registered
LLC "ECOEXPORT"	10.39 Other processing and preserving of fruits and vegetables	registered
LLC "AGROPOINT SOLUTIONS"	46.75 Wholesale of chemical products	registered